

OH.2 Permit Application Checklist

The approvals that apply wherever you build, the code editions actually in force, and the one standard Ohio changed in 2024 that most guides still print wrong.

Before you use this document

This is a process reference, not legal advice. Ohio writes one residential code for the whole state and applies it to your house by its own terms — and then, in that same code, excuses you from submitting plans, obtaining approvals, requesting inspections and getting a certificate of occupancy if no certified residential building department has jurisdiction over your parcel. What never depends on that is the code standard itself, the sewage treatment system permit, the private water system permit, and the contract and lien rules. Confirm every item with the office that will actually handle your parcel before you rely on it. Code editions and rule text were read at codes.ohio.gov in September 2026, including the Board of Building Standards' filed rule PDFs.

WHAT APPLIES WHEREVER YOU BUILD

Work this list first. Every item on it is a state-level requirement that does not depend on whether a building department is certified for your parcel — which means it applies in the most rural township in Ohio exactly as it applies in Columbus.

The approvals that do not depend on a building department

What	Who issues it	What to know
Sewage treatment system permit	Local board of health	Statewide rules at OAC 3701-29, in force since 1 January 2015. Constrains where the house can sit — do it before you fix the footprint
Private water system permit	Local board of health	OAC 3701-28, in force since 1 January 2020. Required before drilling: "no work shall commence until a valid permit has been issued"
Zoning certificate	Township, county or municipality	A wholly separate authority from the building code. Townships zone under R.C. Chapter 519, counties under Chapter 303 — both only in unincorporated territory
Driveway or access permit	Depends on the road	State route: the Ohio Department of Transportation district. County road: the county engineer (§ 5543.16). Township road: the township trustees (§ 5571.02)
Building sewer / sanitary tap	City engineer, board of health, or sewer purveyor	Only if you are on public sewer. That office "shall issue all the necessary permits" for building sewers (§ 3781.03)

The approvals that do not depend on a building department

What	Who issues it	What to know
Floodplain development permit	Local floodplain administrator	Issued by the community, not the state. Check the flood map before you buy, not after
Construction stormwater notice	Ohio EPA	Only at one acre of disturbance — but read the common-plan trap below before deciding you are under it
Utility locate	Ohio 811	Free, and required before any excavation

Contrast this with the building permit itself, which exists only where a building department certified for residential buildings has jurisdiction over your parcel. OH.1 explains that test; OH.4 shows you how to run it against your own address.

THE CODE EDITIONS ACTUALLY IN FORCE

The Residential Code of Ohio is not a book you buy — it is a set of rules in the Ohio Administrative Code, one rule per code chapter, free to read at codes.ohio.gov. Its own opening section names both its title and its model-code base:

OAC 4101:8-1-01, RCO section 101.1

"Chapters 4101:8-1 to 4101:8-25, 4101:8-29, 4101:8-34, and 4101:8-44 of the Administrative Code are designated as the '**Residential Code of Ohio for One-, Two-, and Three-Family Dwellings**' for which the designation 'RCO' may be substituted. **The 2018 edition of the 'International Residential Code', first printing, Chapters 2 through 24, 29, and 44** as published by the 'International Code Council, Inc.' is used as the basis of this document as is incorporated fully except as modified in *italic* herein."

What governs your house, and since when

Subject	Standard	In force	Rule
Residential Code of Ohio 1-, 2- and 3-family dwellings	2018 International Residential Code with Ohio amendments	Effective 1 July 2019	OAC 4101:8
Electrical	2023 National Electrical Code (NFPA 70), incorporated whole and then amended — see the next section	Effective 15 April 2024	OAC 4101:8-34-01 OAC 4101:8-44-01
Energy	2018 International Energy Conservation Code — not moved by the 2024 amendment	Effective 1 July 2019	OAC 4101:8-11-01 OAC 4101:8-44-01

What governs your house, and since when

Subject	Standard	In force	Rule
Foundations	RCO Chapter 4, amended separately from the rest of the code	Effective 1 March 2024	OAC 4101:8-4-01
Plumbing	The Ohio Plumbing Code , incorporated into the RCO — currently on the 2021 International Plumbing Code, a <i>newer</i> cycle than the rest of your house code	OPC effective 15 October 2025	RCO 2501.1 OAC 4101:3

Note the shape of that table: Ohio advanced its electrical standard by six years in April 2024 and left the energy standard where it was. Both editions are fixed in the same rule, OAC 4101:8-44-01, on pages 29 and 31 of the filed PDF. The RCO also has no chapters 26 to 28, 30 to 33, or 35 to 43: Ohio collapsed the model code's ten electrical chapters into a single Chapter 34 and kept only two of its plumbing chapters.

Why almost every source still tells you 2017 — and how to check us

The Board of Building Standards publishes each rule as a PDF of the *amendment*: deleted text is struck through, new text is underlined, on the same line. In the referenced-standards table the National Electrical Code line therefore reads, as printed, **70—1723**.

Copy that line, or run any text extractor over the page, and the strikethrough disappears. What comes out is "70—1723" — which a careful writer then reads as 2017, because 17 comes first. **That single formatting artifact is why the 2017 answer is still circulating two years after it stopped being true.**

Check it yourself in two minutes. Open codes.ohio.gov, go to Ohio Administrative Code rule 4101:8-44-01, click View Rule Text, and look at page 31 with your eyes rather than your clipboard. The 17 is crossed out. Then look at page 29, where IECC—18 sits with no strikethrough at all — which is how you know the energy edition genuinely did not move.

The practical consequence, and it is not academic: your permit is reviewed against the edition in force when your plans are approved. If a supplier, an electrician or a guide is working from the 2017 book, the surge-protection, GFCI and receptacle rules they quote you are the wrong ones. Ask your plan reviewer which edition, and write the answer down.

WHAT OHIO CHANGED IN THE 2023 NEC

Ohio does not rewrite the electrical code — it adopts NFPA 70 whole and then applies a short list of amendments. Several of them save real money and are routinely missed by electricians working from the national book.

Ohio's amendments to NFPA 70, from OAC 4101:8-34-01

What Ohio changed	What the amendment says	NEC section
Whole-house surge protection is not mandatory	The 2023 NEC requires a surge-protective device on dwelling services. Ohio rewrote all three sections to read " Where provided as part of " the feeder or service, an SPD is to be installed in accordance with this section — turning a mandate into a conditional	215.18(A) 225.42(A) 230.67(A)
Outdoor HVAC equipment is exempt from GFCI	Ohio's rewritten outdoor-outlet section carries " Exception No. 2: GFCI protection is not required for listed HVAC equipment " — the amendment that has caused the most nuisance-tripping grief in states that did not make it	210.8(F)
No receptacle required at the service equipment	" Exception No. 1: The receptacle outlet shall not be required to be installed in one-, two-, or three-family dwellings. "	210.64
A sump pump and a garage-door opener get relief	A single receptacle serving a sump pump needs no GFCI where a GFCI-protected duplex sits within six feet of it; and the ceiling-mounted single receptacle serving a garage door opener is excepted	210.8(A)(5) 210.8(A)(2)
Kitchen countertop circuits need no AFCI	" Exception No. 2: Branch circuits supplying receptacle outlets installed to serve only the kitchen countertop surfaces shall be permitted to be installed without arc-fault circuit interrupter protection. "	210.12(A)
A three-family dwelling is treated as multi-family	"Any reference in NFPA 70 to 'one- and two-family dwellings' will include 'one-, two- and three-family dwellings.'" Where the NEC names a one- or two-family dwelling specifically, a three-family dwelling is regulated as multi-family	RCO 3401.1

Confirm these with your electrician before rough-in

	Item	Date	Notes
☐	I confirmed which NEC edition my permit is reviewed against. Answer _____ Date _____		
☐	My electrician knows Ohio does not mandate a whole-house surge protective device — and I have decided whether I want one anyway.		
☐	My outdoor condenser circuit is planned around Ohio's listed-HVAC GFCI exception rather than the national rule.		
☐	Panel and service location confirmed with the utility. Utility _____ Date _____		

WHAT OHIO CHANGED IN THE RESIDENTIAL CODE ITSELF

The RCO is the 2018 IRC "except as modified in *italic herein*", and several of Ohio's modifications matter more to an owner-builder than anything in the model code. Four of them are money; two of them are things a national guide will tell you wrongly.

Ohio's own amendments, and what they cost or save you

What Ohio did	What the code says	Section
Fire sprinklers are not required	Ohio replaced the model code's mandate with an explicit non-requirement: "An automatic residential fire sprinkler system is not required to be installed in one-, two-, or three-family dwellings." Section 313.3 still governs a system you choose to install	RCO 313.2
There is no statewide frost depth	The climatic design table's frost-line cell is blank by design — footnote b: "The jurisdiction shall fill in the frost line depth column with the minimum depth of footing below finish grade." Ground snow load and seismic category are blank for the same reason. The only statewide floor is 12 inches below undisturbed ground	RCO Table 301.2(1) RCO 403.1.4
Freestanding outbuildings lost their frost exemption	The March 2024 Foundations amendment deleted the model code's exemptions for freestanding accessory structures of 600 and 400 square feet. Only one exception survives: decks not supported by a dwelling. Your pole barn needs frost-depth footings in Ohio	RCO 403.1.4.1
The code has no radon requirement at all	Not "locally adopted" — absent . Ohio adopted IRC Chapters 2 through 24, 29 and 44 and no appendices , and radon control is Appendix F. A local jurisdiction could add a rule, but only through the non-conflict process in OH.3	RCO 101.1
Stairs may be steeper than the model code	Ohio permits a riser of up to 8¼ inches and a tread of as little as 9 inches , against the model code's 7¾ and 10. That shortens the stair run and can save real floor area in a small house	RCO 311.7.5.1 RCO 311.7.5.2
Smoke alarms need both technologies	"On each level within each dwelling unit smoke alarms utilizing photoelectric and ionization technologies shall be installed. Separate or dual-sensing smoke alarms may be used." A single-technology alarm on a level does not comply	RCO 314.1.2
A screened porch can skip the guard	Guards are required above 30 inches, and "insect screening shall not be considered as a guard" — but Ohio adds an exception for a protective bar 34 to 38 inches above the deck on the interior side of the screening, resisting 50 pounds per lineal foot	RCO 312.1.1

The frost-depth point deserves emphasis because guides get it wrong in both directions. Ohio publishes no frost number, so any source quoting you "32 to 42 inches" as the Ohio code is quoting something

that is not in the code. What Ohio does fix statewide in the same table is a 115 mph ultimate design wind speed, severe weathering, and a requirement for ice barrier underlayment everywhere — footnote h records that "all jurisdictions in Ohio have a history of local damage from the effects of ice damming." **Get your frost depth from your building department in writing.** Where none is certified, there is no published figure at all and you should design to documented local practice.

Your plumbing code is newer than your building code — and that is a recent change

The RCO does not contain the model code's plumbing chapters. Section 2501.1 replaces all of them with a pointer: "The provisions of the '**Ohio Plumbing Code**' as **referenced in Chapter 44 shall be incorporated herein...** and shall govern the installation, testing and operation of the plumbing in buildings within the scope of this code", with a single Ohio change to shower pan lining at 2501.1.1.

The April 2024 amendment cut the edition loose. The referenced-codes table used to pin residential plumbing to the 2017 Ohio Plumbing Code; that pin is struck through in the filed rule, leaving a general pointer to the plumbing chapters as they stand. **The Ohio Plumbing Code now in effect took effect 15 October 2025 and is based on the 2021 International Plumbing Code.** So your plumbing is reviewed against a 2021 model code while the rest of your house is reviewed against a 2018 one.

And it is very often inspected by a different office. In the Board of Building Standards' own dataset, the plumbing entity named for a residential-certified jurisdiction is a **county health district in roughly two thirds of cases** rather than the building department — a separate agency, a separate submission and a separate fee. Because plumbing enforcement flows from R.C. § 3781.03(C) and not from building-department certification, a health district can require a plumbing inspection in a county with no building department at all. Confirm both tracks before you start.

One more thing worth knowing before you pay an energy consultant. Ohio's energy chapter offers **five** compliance paths, not the usual two — the prescriptive route, the simulated performance route, the Energy Rating Index route, the International Energy Conservation Code itself, and **an Ohio-specific option written by the Ohio Home Builders Association** at RCO section 1112 (OAC 4101:8-11-01 1101.2.1). For a modest owner-built house the last of those is frequently the cheapest way to demonstrate compliance. Ask your reviewer which paths they see most often. Ohio's climate zones are set by a statewide county table: nine southern counties — Adams, Brown, Clermont, Gallia, Hamilton, Lawrence, Pike, Scioto and Washington — are Zone 4A, and the other seventy-nine are Zone 5A.

THE SEWAGE SYSTEM PACKAGE, IN ORDER

On a rural Ohio build this is the longest pole and the one that decides where the house physically sits. It runs entirely through your local board of health under statewide rules, and it is completely independent of whether anybody permits your building.

The sewage permit sequence

	Item	Date	Notes
☐	Soil evaluation. You may not do this yourself. It must be done by a soil scientist certified by the Soil Science Society of America, an equivalently registered soil professional, or a registered sanitarian on the health district's own staff (§ 3701-29-07(A)). You may hire your own rather than use the district's. Evaluator _____ Date _____		
☐	Design. Ohio requires no professional engineer and creates no registered-designer credential — the rule's test is a functional one (§ 3701-29-10(A)). The designer must visit the site and stake or flag the absorption area. Designer _____ Date _____		
☐	The site drawing must show the isolation distances met by BOTH the system and the replacement area (§ 3701-29-10(C)(9)). This is the drawing the health district actually reviews.		
☐	Installation permit from the board of health, before any work. Permit no. _____ Date _____		
☐	If I am installing it myself: I understand I must first register as an installer with my board of health. There is no blanket homeowner exemption — see the box below.		
☐	Installer's as-built drawing received and filed (§ 3701-29-09(F)). Any change to component locations needs prior approval and may not violate an isolation distance. Date _____		
☐	Operation permit issued. Term is set by your board of health and may not exceed ten years (§ 3701-29-09(I)(4)) — it is not an annual permit by state rule. Term _____ Expires _____		
☐	I know the board of health inspects the completed system again within twelve months of approving the installation (§ 3701-29-09(H)).		

"I'll install my own septic" — read the sentence first

Ohio's rule is one sentence and it is not the exemption people expect. OAC 3701-29-03(H): **"When the registered installer performs the duties of an installer on only the registrant's personal residence, the board of health may waive paragraphs (C)(1), (C)(4), and (C)(6) of this rule."**

The subject of that sentence is **"the registered installer."** You must become one first — registration is with your board of health, per health district, expiring at the end of each calendar year. What the district *may* waive is the registration fee, the \$500,000 general liability insurance, and the surety bond. What is not on the waiver list, and therefore still applies: proof of compliance with the Department of Health's testing requirements, any system-specific training the product approval demands, and the continuing-education requirement on renewal.

And note the verb is "may," not "shall." Every one of those waivers is discretionary. Ask your district what it actually does before you build a schedule or a budget around installing it yourself.

Two siting rules will shape your site plan more than anything else in this kit.

OAC 3701-29-06(G) — the two rules that size your lot

Rule	What it requires
The replacement area	Every new system needs a <i>second</i> fully compliant area held in reserve: "sufficient suitable area shall be available to accommodate a STS including a designated area for complete relocation and replacement ", and every isolation distance "shall be met for the STS and designated replacement area ". It must be identified at design, staked, and protected from construction damage — and a board of health may not waive it when reviewing new lots
No statewide minimum lot size	Ohio's sewage rules set none. The functional constraint is whether two compliant absorption areas plus every setback fit on the parcel. Your <i>zoning</i> and your health district may impose an acreage minimum of their own, and often do

*Ohio's septic setbacks are unusual in shape: rather than a long row-by-row table, the whole statewide scheme is four short paragraphs that group many features under two numbers. All components of a system keep **10 feet** from a utility line, roadway, driveway or other hardscape, property line or right-of-way, properly sealed well, building or other structure, recorded easement, intermittent stream, swale, horizontal geothermal loop, irrigation line or gray water system. The absorption field keeps **50 feet** from an impoundment, lake, river, wetland, perennial stream, and road or stream cut-bank; and all components keep **50 feet** from any water supply source and from a vertical geothermal loop. OAC 3701-29-06(G)(3)(a) to (c). **Every number is a statewide floor** — your board of health may require more (OAC 3701-29-22).*

THE PRIVATE WATER SYSTEM PACKAGE

A well, spring, cistern or pond serving the house is a "private water system" and is permitted by the same board of health, under OAC 3701-28. **The permit must exist before any work starts** — "no work shall commence until a valid permit has been issued and approved" — and the emergency exception is expressly unavailable on raw land where no structure yet exists.

The private water sequence

	Item	Date	Notes
☐	Application, including a site plan. The rule lists what it must show: distances from roadways, rights-of-way, buildings, driveways, sewage systems, sewers, existing and sealed wells, oil and gas wells, fuel and chemical tanks, streams, lakes, ponds, ditches, leaching pits, privies, manure ponds, lagoons and piles, lot lines and easements (§ 3701-28-03(B)). Date filed _____		
☐	Pre-construction site review with the health district to confirm the isolation distances are met — mandatory, and before construction (§ 3701-28-03(A)(3)(a)). Date _____		
☐	I know the review clock is ten business days, or fifteen where plans are required (§ 3701-28-03(A)(3)).		
☐	If I am drilling it myself: I must register with the Ohio Department of Health as a private water systems contractor and post a surety bond. Only the liability insurance is waived. See the box.		
☐	Water sample — the application fee includes at least one (§ 3701-28-03(A)(1)). Result _____ Date _____		
☐	Well log filed by the driller with the Ohio Department of Natural Resources — separate from the health district permit. Do not conflate them. Date _____		

Drilling your own well is allowed — and the fine print is expensive

Ohio splits owner work into two paths and they are not equally easy. If you are building the pump, pressure tank, distribution piping, a treatment system, a spring, a pond or a hauled-water tank — anything *except* drilling — you "shall obtain a registration to perform work, but are **exempt from the bonding and business liability insurance requirements**" (OAC 3701-28-18(A)(3)). That is a light requirement.

Drilling is carved out of that relief. An owner "drilling a well for construction or alteration purposes shall obtain a registration to perform work, but are **exempt from the business liability insurance requirements**" — and nothing else (OAC 3701-28-18(A)(4)). **The surety bond still applies to an owner-driller.** A new registrant also receives a mandatory Department of Health field assessment during construction.

Read the two paragraphs side by side before you decide. For most owner-builders, hiring a registered driller is faster and cheaper than becoming one; doing your own pump and distribution work is genuinely straightforward. Confirm the current fee and bond figures with the Department of Health — they are set by rule and they change.

*Well setbacks worth knowing at the site-planning stage, from OAC 3701-28-07: a well, spring box or pond may not sit within **10 feet** of a building foundation, or closer than **5 feet** to the edge of a deck, porch or extended slab that is not part of the foundation (D); a water source keeps **10 feet** from an established road right-of-way, or **25 feet** from the edge of the driving surface where none is designated (G); and **5 feet** from a private driveway or parking lot (H). Table 1 to paragraph (J) then carries a full thirty-four-row list — including **10 feet** to lot lines and easements, **50 feet** to any component of a sewage or gray water system, and **100 feet** to an unabandoned leaching pit or drywell. OH.5 tells you where to read it.*

STORMWATER — THE ONE-ACRE TEST AND ITS TRAP

Most single-house sites never reach the threshold. The trap is the second half of the sentence, which sweeps in a lot of owner-builders who correctly measured their own lot.

Ohio EPA construction stormwater general permit OHC000006

Coverage is required for "excavating, grubbing and/or filling activities that disturb **one or more acres**", and construction disturbing one or more acres **or** less than an acre where the work "**is part of a larger common plan of development**" that will ultimately disturb one or more acres is eligible for coverage under the permit.

If your lot is in a subdivision, the common plan is the subdivision — not your lot. A half-acre disturbance on a single lot inside a twelve-acre development is inside the permit. Ask the developer whether their coverage extends to individual lot construction, and get the answer in writing.

Permit OHC000006 was effective 23 April 2023 and expires 22 April 2028, so a renewal falls inside the life of many builds — check the current permit number before filing. Coverage is obtained by filing a Notice of Intent

with Ohio EPA's Division of Surface Water, and the fee is tiered by disturbed acreage. Two watersheds have their own separate construction stormwater permits rather than the general one: **Big Darby Creek** and the **Olentangy River**. If you are building in central Ohio, check which permit applies to you.

IF A BUILDING DEPARTMENT DOES HAVE JURISDICTION

Then Ohio gives you five statutory protections that most owner-builders never learn they have. All five are in one section, R.C. 3791.04, and all five are worth knowing before your first plan review rather than after.

Five things R.C. 3791.04 gives you

Protection	What the statute says	Cite
No seal required	"No seal is required for any plans, drawings, specifications, or data submitted for approval for any residential buildings ". You do not need an architect or engineer to stamp a house plan in Ohio	§ 3791.04(A)(2)(b)
Silence past 30 days is a denial you can appeal	Plan approval is defined as a "license", and "the failure to approve plans or specifications as submitted... within thirty days " is "an adjudication order denying the issuance of a license" requiring a hearing. A denial "shall specify the reasons"	§ 3791.04(E)
Approved plans are conclusively presumed to comply	Once approved, the structure "and every particular represented by and disclosed in those plans shall, in the absence of fraud or a serious safety or sanitation hazard, be conclusively presumed to comply " — and you are locked to "any rule in effect at the time of approval"	§ 3791.04(D)
Conditional approval to keep building	If the department objects to part of the plans you "may request the agency to issue conditional approval to proceed with construction up to the point of the objection " — available where the objection is a conflicting interpretation rather than a specific technical requirement	§ 3791.04(G)
Foundation-only permits are authorized	Rules may provide for approving "the plans for construction of a foundation or any other part of a building... before the complete plans... are submitted"	§ 3791.04(D)

The deadline that is yours to miss

Plan approval "is invalid if construction... **has not commenced within twelve months** of the approval", and if work "is delayed or suspended for **more than six months**" the approval is likewise invalid (§ 3791.04(C)). One twelve-month extension and two six-month extensions are available — but each must be requested **at least ten days before the approval expires**. That ten-day rule is statutory, it is easy to miss on a slow self-build, and missing it means resubmitting the whole plan set.

PERMIT RECORD — FILL THIS IN AS EACH ONE ISSUES

Every approval this build needed, and what it cost

	Item	Date	Notes
☐	Building plan approval, if one exists here No. _____ Fee _____ Date _____		
☐	Zoning certificate No. _____ Fee _____ Date _____		
☐	Sewage treatment system installation permit No. _____ Fee _____ Date _____		
☐	Sewage treatment system operation permit, and its term Term _____ Expires _____		
☐	Private water system permit No. _____ Fee _____ Date _____		
☐	Water sample result Result _____ Date _____		
☐	Driveway or access permit Office _____ No. _____ Date _____		
☐	Building sewer / sanitary tap, if on public sewer No. _____ Fee _____ Date _____		
☐	Floodplain development permit, if applicable No. _____ Date _____		
☐	Ohio EPA stormwater Notice of Intent, if one acre or a common plan No. _____ Date _____		
☐	Ohio 811 locate ticket No. _____ Date _____		
☐	Electric service application Utility _____ Date _____		

Everything cited here is free to read in one place. Ohio publishes both its statutes and its agency rules at **codes.ohio.gov** — the Revised Code (**R.C. § 3781.10**) under Ohio Revised Code, the Administrative Code (**OAC 4101:8-1-01, OAC 3701-29-06**) under Ohio Administrative Code. Both are searchable by number alone. **One warning about how the building code reads there:** the Board of Building Standards files its rules as PDFs of the amendment itself, so text that was deleted is struck through and text that was added is underlined, on the same line. Copy that line and the strikethrough vanishes — which is how a referenced standard reading "70—1723" gets quoted as "1723" or, worse, as the edition Ohio just replaced. Read the rule PDF with your eyes, not your clipboard. Read September 2026.